

24STCV30477 24STCV30477

County: los-angeles

Division: Civil Law and Motion

Department: 415

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Case Number: 24STCV30477 Hearing Date: August 10, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 10, 2026

CASE NUMBER

24STCV30477

MOTIONS

Motions to Compel Discovery Responses

MOVING PARTY

Plaintiff Price Latimer

OPPOSING PARTY

None

MOTIONS

Plaintiff

Price Latimer ("Plaintiff") moves to compel responses from Defendants Prime Association Services, Inc. and Optimum Professional Property Management, Inc. ("Defendants") to Form Interrogatories, set one ("FROG"), Special Interrogatories, set one ("SROG"), and Requests for Production, set one ("RPD").

ANALYSIS

Plaintiff served

the FROG, SROG, and RPD on Defendants on March 4, 2025 by email on Defendants' counsel of record, Harrington, Foxx, Dubrow & Canter, LLP ("Counsel"). Plaintiff represents in several communications with Counsel, promises were made by Counsel to provide responses, but none were provided. Defendants did not appear through their Counsel until Defendants filed their answer on June 20, 2025.

However, as Plaintiff represented in an earlier discover motion against a third Defendant in this action, in correspondence with Plaintiff, Counsel acknowledged service of the discovery. Thus, the Court concludes Defendants received the discovery.

As of the filing

date of these motions on March 23, 2026, Defendants had not responded to the discovery. Accordingly, the motions to compel responses to the FROG, SROG, and RPD are granted pursuant to Code of Civil Procedure sections 2030.290 and 2031.300.

Defendants are ordered to serve verified responses to the subject discovery without objections within 30 days of service of notice of this order.

The Court finds Defendants' failure to serve timely responses to the discovery constitutes an abuse of the discovery process and awards sanctions. The Court imposes sanctions against Defendants in the amount of \$1,500, which represents one and a half hours of preparation time for the motions and to attend the hearing at \$1,000 per hour.

CONCLUSION AND ORDER

Plaintiff's motions to compel responses to the FROG, SROG, and RPD are granted. Defendants are to serve verified responses, without objections, within 30 days of notice of this order, unless the parties agree otherwise.

Defendants are to pay sanctions in the amount of \$1,500 to Plaintiff, by and through counsel, within 30 days of notice of this order.

Plaintiff is ordered to provide notice of the Court's ruling and to file proof of service of same.